

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(Special Original Jurisdiction)**

WRIT PETITION NO. 15231 OF 2016

In the matter of:

An Application under article 102 of the
Constitution of the People's Republic of
Bangladesh.

And

In the matter of:

Pulindra Mozumder

... Petitioner

-Versus-

Judge, Arpita Sampatti Prottarpan Additional
Appellate Tribunal No. 5 and Additional District
Judge, 5th Court, Sylhet and others

... Respondents

Mr. Moni Shankar Sarker, Advocate for
Mr. Surajit Bhattacharjee, Advocate

...For the petitioner

Mr. Tapas Bandhu Das, Advocate with
Mr. Manzur-Al- Matin, Advocate and
Mr. Snehadri Chakravarty, Advocate

...For the respondent nos 4 and 5

**Heard on 27.10.2025, 28.10.2025
and Judgment on 28.10.2025**

Present:

Mr. Justice Md. Mozibur Rahman Miah

And

Mr. Justice Rezaul Karim

Md. Mozibur Rahman Miah, J.

On an application under article 102 of the Constitution of the
People's Republic of Bangladesh, a Rule Nisi was issued calling upon the

respondents to show cause as to why the judgment and decree dated 25.10.2016 (Decree signed on 02.10.2016) passed by the learned judge, *Aripta Sampatti Prottarpan* Additional Appellate Tribunal No. 5 and Additional District Judge, 5th Corut, Sylhet (Respondent No. 1) in *Aripta Sampatti Prottarpan* Appeal No. 12 of 2015 (Annexure-H) dismissing the appeal and modifying the judgment and decree dated 05.11.2014 (decree signed on 16.11.2014) passed by the learned *Aripta Sampatti Prottarpan* Tribunal, Additional Court No. 5 and Senior Assistant Judge, Sylhet (Respondent no. 2) in *Aripta Sampatti Prottarpan* Case No. 418 of 2012 (heard analogously with *Aripta Sampatti Prottarpan* Case No. 1519 of 2012 and 1649 of 2012) (Annexure-G) **allowing** the *Aripta Sampatti Prottarpan* Case No. 418 of 2012 in-part releasing .78 acres of land out of 1.56 acres of land while **dismissing** *Aripta Sampatti Prottarpan* Case No. 1519 of 2012 and 1649 of 2012 should not be declared to have been made without lawful authority and is of no legal effect and/or such other or further order or orders passed as to this Court may seem fit and proper.

At the time of issuance of the rule, the operation of the impugned judgment and decree dated 25.09.2016 dismissing the appeal and modifying the judgment and decree dated 05.11.2014 passed in vested property restoration case no. 418 of 2012 was stayed for a period of 06(six) months. On the date of issuance of the rule, the party were also directed to maintain status quo in respect of possession and position in the suit land for a period of 06(six) months. The said interim order was subsequently extended from time to time and it was lastly extended on 28.05.2025 till disposal of the rule.

The short facts leading to issuance of the instant rule are:

The present respondent nos. 4 and 5 as plaintiffs originally filed a suit being vested property restoration suit No. 418 of 2012 in the court of Senior Assistant Judge and Judge vested property restoration Additional Tribunal No. 5, Sylhet seeking following reliefs:

(ক) নিম্ন তফসিল বর্ণিত ভূমি প্রত্যর্পণ তালিকা হইতে অবমুক্ত
হওয়ার;

এবং

(খ) মাননীয় আদালতের ন্যায় বিচারে প্রার্থী আরো যে যে অতিরিক্ত
উপকার পাওয়ার যোগ্য বিবেচিত হন তাহা পাওয়ার;

এবং

(গ) সর্বাবস্থায় অত্র মোকদ্দমা ডিক্রি দানে মর্জি হয়।

The precise facts so have been described in the plaint of the suit are:

The suit property was originally belonged to one, Rup Charon Das whose name SA khatian was prepared being SA khatian No. 1398 and on his demise, the same was devolved upon his son, Jogash Chandra Das, Gopash Chandra Das, Norendra Chandra Das and Monindra Kumar Das. On an amicable arrangement among those heirs of Rup Charon Das, Jogash Chandra Das as heirs got 14 decimals of land out of SA plot No. 1108 and 1111 as well as 38 decimals of land out of SA plot no. 1110, 1109 and 1108 totaling 52 decimals of land who subsequently transferred the same to one, Minindra Kumar Das vide registered sale deed dated 21.05.1981 and handed over possession thereof to the recipient. Then Noren Chandra Das son of, Rup Charaon Das transferred 14 decimals of land out of plot nos. 1111 and 1108 in favour of Monindra Chandra Das by registered sale deed dated 18.07.1981. It has further been stated that 7

and 11 decimals of land out of SA plot No. 1108 as well as 1109 corresponding to SA khatian no. 1369 and that of 68 decimals of land out of plot no. 1110 acquired by Nolony Kanto Das by virtue of amicable partition and then he transferred the property developed upon him by way of *Nadabipotra* dated 27.06.1981 in favour of Monindra Kumar Das. In the aforesaid way, Monindra Kumar Das by way of inheritance as well as purchase, got 1.34 acres of land who then transferred the same to one, Iskondar Ali and Gias Miah by registered sale deed dated 16.06.1982. Monindra Kumar Das subsequently transferred 22 decimals of land in favour of the plaintiff no. 1 as well as his full brother, Md. Sher Ali by registered sale deed dated 09.02.1984. Thereafter, Iskonder Ali by registered sale deed dated 14.03.1988 transferred 67 decimals of land in favour of the plaintiff no. 1 when Gias Uddin Miah transferred his purchased 67 decimals of land to proforma defendant nos. 2-3 by registered sale deed dated 15.03.1988. In the aforesaid way, the plaintiffs and his full brother, proforma-defendant no. 2 and his wife, proforma defendant no. 3 acquired the same. After purchasing the said property by those plaintiffs as well as proforma defendant nos. 2 and 3 they got their name mutated in the khatian vide mutation case No. 602 /88-89 and accordingly paid rent (*Khazna*) to the respective government office. In the latest revisional survey, initially field survey (মাঠ জরিপ) was prepared in the name of the plaintiffs as well as proforma defendant nos. 2 and 3 but in the stage of attestation, the same was wrongly made in the name of the government as vested property for which the plaintiffs as well as proforma defendant nos. 2 and 3 filed an 'objection case' under rule 30 of

State Acquisition and Tenancy Rules, 1956 being objection case no. 56 and got order in their favour. It has also been stated that since purchase, the plaintiffs as well as the proforma defendant nos. 2 and 3 have been in possession over the suit property. It has also been stated that, the predecessor of the plaintiffs and the proforma defendant nos. 2 and 3 did never leave this country and they also died in this country. It has lastly been stated that, since the property has finally been enlisted in 'Ka' schedule vide gazette notification dated 15.04.2012 in serial no. 313 which is why the plaintiff's title has been clouded and hence the suit.

The respondent no. 3 entered appearance in the suit and contested the same by filing a written statement denying all the material statement so made in the plaint contending inter alia that the owner of the land under plot no. 1108, 1109, 1110, 1111 of SA khatian no. 1369 and 1398 belonged to one Rup Charon Das, Jitendara Kumar Das and others.

Rup Charon Das died leaving behind 6 sons who all left for India and has been living there. It has also been stated that, all the recorded owners so described in two SA khatians left the country during the period of India Pakistan war in 1965 and therefore the property so left by them became vested and non-resident property through initiating vested property case No.68/81-82 and it was leased out to different lessees namely, Goni Miah, Akram Ali and Motalib and they are in possession of the same and therefore the suit is liable to be dismissed.

It is worthwhile to mention here the very suit was tried along with another two suits namely, vested property restoration suit no. 1519 of 2012 and 1649 of 2012 and all those three suits were taken up for hearing

analogously and vide judgment and decree dated 05.11.2004, the vested property restoration suit no. 418 of 2012 was allowed and those of 1519 of 2012 and 1649 of 2012 were dismissed. It has also been stated that in disposing of vested property restoration suit no. 418 of 2012, the plaintiffs-respondent nos. 4 and 5 examined as many as 3 witnesses and produced several documents which were marked as exhibit nos. 1-6. However, challenging the judgment and decree passed in vested property restoration suit no 418 of 2012, the present respondent no. 3 as appellant preferred an appeal before the learned District Judge, Sylhet which was registered as vested property restoration appeal being no. 12 of 2015 and on transfer it was heard by the learned Additional District Judge, 5th Court, Sylhet. In disposing of the appeal, the appellate court also framed as many as 3 different issues and after hearing the parties to the appeal, the learned Additional District Judge vide judgment and decree dated 25.09.2006 though dismissed the appeal but modified the judgment and decree passed by the trial court allowing the appeal by releasing 78 decimals of land out of 1.56 acres of land in favour of the plaintiffs-respondent nos. 3-4.

Feeling aggrieved by and dissatisfied with the said judgment and decree passed by the Appellate Tribunal one, Pulindra Mojumder filed the instant writ petition and obtained rule and order of stay.

Mr. Moni Shankar Sarker, the learned counsel appearing for the petitioner upon taking us to the writ petition and by reading out two judgments of the courts below at the very outset submits that the learned judge of the Appellate tribunal below committed an error of law in not

taking into consideration of the material fact that the predecessor of the plaintiffs in vested property case no. 418 of 2012 left the country during India-Pakistan War in 1965 having no scope to get the property by way of purchase by the respondent nos. 3 and 4 as plaintiffs.

The learned counsel by taking us to the grounds to the writ petition also contends that the present petitioner got the property by way of lease vide settlement case no. 68 of 1981 and 1982 and the petitioner has still been possessing the suit property having no scope for the respondent nos. 3 and 4 to get a decree in their favour by releasing the same from 'Ka' schedule. When we pose a question to the learned counsel for the petitioner what is the locustandi of the petitioner to file a writ petition claiming to be lessee the learned counsel then finds it difficult to give any plausible reply to our said query though finally prays for making the rule absolute on setting aside the impugned judgment and decree.

On the contrary, Mr. Tapas Bandhu Das, the learned counsel appearing for the respondent nos. 4 and 5 vehemently opposes the contention taken by the learned counsel for the petitioner and contends that, the petitioner has got no locustandi to file the instant writ petition since under the relevant provision provided in *Aripta Sampatti Prottarpan* Ain, 2001 as a lessee can not be any party to a suit or can challenge the decree so passed by the tribunal as well as the appellate tribunal. In support of his such submission, the learned counsel has then placed his reliance in the decision reported in 56 DLR (AD) 72 and take us to paragraph no. 17 thereof and submits that in that decision it is held that even before enacting *Aripta Sampatti Prottarpan* Ain, 2001 it has been

settled therein that a lessee has got no *locustandi* to add or contest any suit challenging enlistment of any property as vested property and the said decision is equally applicable in the facts and circumstances of the instant case.

The learned counsel further contends that, since the respondent nos. 4 and 5 have been able to prove their case in toto by adducing and producing sufficient material documents, the learned judge of both the courts below on due considering of those materials on record correctly decreed the suit.

The learned counsel also submits that the appellate tribunal below has rightly modified the judgment and decree of the tribunal since the proforma defendant nos. 2 and 3 did not pray for releasing their respective property enlisted in 'Ka' schedule as per the provision of section 5 of the *Aripta Sampatti Prottarpan Ain*, 2001 and for that obvious reason the respondents have not challenged the judgment passed by the appellate tribunal.

The learned counsel lastly contends that, since all the document produced by the respondent nos. 4 and 5 as plaintiffs were marked as exhibits without any objection by the respondent no. 3 so the enlistment of the property in 'Ka' scheduled under section 9(1) of the *Aripta Sampatti Prottarpan Ain*, 2001 is totally illegal and finally prays for discharging the rule.

Though in the instant writ petition, the government represented by the Deputy Commissioner has been made as respondent no. 3 but the learned Deputy Attorney General submits that since he did not get any

instruction for taking any step in regard to the instant writ petition, so he is unable to make any submission to that effect.

Be that as it may, we have considered the submission so placed by the learned counsel for the petitioner and that of the respondent nos. 4 and 5 and very meticulously gone through the judgment and decree under challenge in this writ petition and all the documents appended therewith. Since the learned counsel for the respondent nos. 4 and 5 in his submission raised the question of maintainability of the writ petition so we are not inclined to dwell on other factual aspects raised in the instant writ petition. However, it has consistently been settled by this court as well as the Appellate Division, that a lessee from the government has no locustandi to add any party in a suit as well as in an appeal challenging the propriety of enlisted any property as vested property. So under no circumstances can the writ petition be maintained. Apart from that, on careful perusal of the judgment passed by the Orpitta Shampatti (অর্পিত) prattapan tribunal as well as appellate tribunal we find that both the courts passed the judgment by discussing evidences exhaustively allowing the case of the respondent nos. 4-5 by releasing their purchased property measuring 78 decimals of land from 'Ka' schedule published in the gazette dated 15.04.2012 made under serial no. 313. Since we don't find any material irregularity or illegality in both the judgments passed by the tribunal as well as appellate tribunal, we thus refrain ourselves from discussing or making any adverse observation with regard to the merit of the case since in essence, it is a judgment of affirmance.

Regard being had to the above facts and circumstances, we don't find any shred of merit in the instant rule.

Accordingly, the rule is discharged however without any order as to costs.

The judgment and decree dated 25.09.2016 passed by the learned judge, *Aripta Sampatti Prottarpan*, Additional Appellate Tribunal No. 5, Sylhet in Arpita Appeal No. 12 of 2015 is thus affirmed.

The respondent no. 3 is hereby directed to take necessary step in releasing 78 decimals of land from scheduled 'Ka' so have been published in the gazette dated 15.04.2012 serialized as serial no. 313 as per the judgment and decree dated 25.09.2016 passed in Aripta Appeal No. 12 of 2015 by the respondent no. 1 within 1(one) month from the date of receipt of the copy of this judgment and order.

The order of stay and status quo granted at the time of issuance of the rule stands recalled and vacated.

Let a copy of this judgment and order be communicated to the respondent nos. 1-3 forthwith.

Rezaul Karim, J.

I agree.